

**CHAPTER xxxix.**

An Act to provide for an increase of the contributions to the Railway Clearing System Superannuation Fund by the Railway Clearing House certain railway companies and joint committees the Clearing House Committee (Ireland) and certain contributing members of the Fund and for other purposes. [8th July 1914.] A.D. 1914.

WHEREAS by the Railway Clearing System Superannuation Fund Acts 1873 to 1897 provision was made for establishing and regulating a Fund (in this Act referred to as "the Fund") for the payment of superannuation allowances to the salaried officers and clerks employed by the Clearing Committee mentioned in the Railway Clearing Act 1850 (which Committee was by the Railway Clearing Committee Incorporation Act 1897 incorporated as "the Railway Clearing House") and to the salaried officers and clerks employed by certain railway companies and joint committees and to the salaried officers and clerks employed by the Clearing House Committee mentioned in the Clearing Act (Ireland) 1860 (in this Act referred to as "the Clearing House Committee (Ireland)"):—

And whereas the said Acts and the rules made thereunder prescribe the amounts which the Railway Clearing House the railway companies and joint committees subscribing to the Fund and the Clearing House Committee (Ireland) (in this Act together referred to as "the contributing bodies") respectively shall subscribe in respect of their salaried officers and clerks who for the time being should be members of the Fund:

And whereas it was provided by the Railway Clearing System Superannuation Fund Incorporation Act 1897 that the

A.D. 1914. — several persons who from time to time should be members of the Railway Clearing House and of the Committee of the Fund constituted by the Railway Clearing System Superannuation Fund Association Act 1873 respectively and the salaried officers and clerks contributing to the Fund should be and they were thereby constituted a body corporate by the name of “The Railway Clearing System Superannuation Fund Corporation” (in this Act referred to as “the Corporation”):

And whereas a recent actuarial valuation of the Fund has disclosed a deficiency in the assets of the Fund available for payment of the benefits prescribed by the rules as now in force:

And whereas it is expedient in order to place the Fund on a satisfactory basis that the contributions to the Fund should in certain cases be increased:

And whereas the contributing bodies are desirous of securing to certain members of the Fund the benefits of the Fund as provided by the rules in force on the thirtieth day of June one thousand nine and thirteen and it is expedient that they should be empowered to make such additional contributions as may be necessary for securing such benefits as aforesaid:

And whereas it is expedient that more extensive provision should be made for the investment of the Fund:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Railway Clearing System Superannuation Fund Act 1914 and this Act and the Railway Clearing System Superannuation Fund Acts 1873 to 1897 shall be construed together as one Act and may be cited as the Railway Clearing System Superannuation Fund Acts 1873 to 1914.

Contributions
in respect of
deficiencies.

2. If and whenever the consulting actuaries appointed in accordance with the rules shall certify that there is or but for the increased contributions by this section provided for there

would be a deficiency in the assets of the Fund in respect of the persons who since the thirtieth day of June one thousand nine hundred and thirteen have or shall become contributing members of the Fund such persons shall contribute to the Fund such sums in excess of two and a half per centum of their salaries as the said actuaries shall from time to time certify to be (together with the increased contributions of the contributing bodies hereinafter in this section mentioned) sufficient to make good such deficiency and the contributing bodies shall in respect of such contributing members as shall be in their respective services contribute to the Fund the same contributions as such contributing members respectively. A.D. 1914.

3.—(1) In order to secure the benefits of the Fund as provided by the rules in force on the thirtieth day of June one thousand nine hundred and thirteen any of the contributing bodies may as from the first day of July one thousand nine hundred and thirteen or any subsequent date pay as part of their working expenses for a limited period the whole or part of any superannuation allowance which has or shall become due to any member of the Fund who has or shall have been in the service of such contributing body and who shall retire or shall have retired from the service consequent upon his attaining or having attained the age of sixty years or more and who either was contributing to the Fund on the thirtieth day of June one thousand nine hundred and thirteen or was at that date in receipt of a superannuation allowance which commenced to be payable after the first day of October one thousand nine hundred and ten. Power to contributing bodies to make further contributions to secure benefits of fund.

(2) The period for which the whole or part of such superannuation allowance may be paid by the contributing bodies shall be determined from time to time by the consulting actuaries appointed in accordance with the rules and shall in no case be longer than shall be necessary to secure to such superannuated members the benefits as aforesaid without resulting in a deficiency in the Fund.

(3) All moneys due to superannuated members under the foregoing provisions of this section may be paid to the Corporation for the purpose of being paid by them to the persons entitled thereto and such payments shall for the purpose of determining the sum due in accordance with the rules from

A.D. 1914. — time to time in force to representatives of deceased superannuated members be deemed to be superannuation allowances paid by the Fund.

(4) The contributing bodies may in addition contribute to the Fund during the period that the whole or part of any such superannuation allowances are paid by them the same monthly payments as were made to the Fund both by them and by such superannuated members immediately prior to the retirement of such members respectively from the service.

(5) Nothing in this section shall relieve the committee of the Fund of the obligation under Rule 41 to take the necessary steps to have the rules altered to give effect to their proposals for meeting any deficiency referred to in the said rule and the members of the Fund who have been in the service of contributing bodies which shall not agree to make any payment or contribution under this section shall be entitled to the same superannuation allowances as they would be entitled to under the rules from time to time in force as if this section had not been passed and the members of the Fund who have been in the service of contributing bodies which shall agree to make payments or contributions under this section less than the payments or contributions which would be necessary in order to secure the benefits of the Fund as provided by the rules in force on the thirtieth day of June one thousand nine hundred and thirteen shall be entitled to such superannuation allowances as the rules may from time to time prescribe in that behalf.

Further power to contributing bodies to contribute in certain cases.

4. If by reason of the age at which any person has or shall become a contributing member of the Fund the contribution of such member exceeds or shall exceed the ordinary contribution of two and a half per centum of his salary the contributing body employing such member may contribute to the Fund the same excess over the ordinary contribution as such member.

Investment of fund.

5. In addition to the securities or investments in which the Fund is now authorised to be invested it may be invested—

(a) In the public stocks or funds or Government securities (whether registered or inscribed or passing by mere delivery) of any foreign Government or State or any province in any British colony or dependency which has never made default in meeting its obligations;

- (b) In the bonds debentures or other securities of any municipal corporation in any British colony or dependency or in any foreign country having power to mortgage its rates or public income as security for the principal so invested and the interest or dividends becoming due thereon; A.D. 1914.
- (c) In the bonds debentures debenture stock or guaranteed or preference stock or shares of any gas water or electric company or of any foreign railway company provided that such company shall for the ten years immediately preceding that in which the investment is made have paid a dividend on its ordinary stock or shares; or
- (d) In the bonds debentures debenture stock or preference or ordinary stock or shares of any railway or dock company or other undertaking the interest or dividend whereon is guaranteed by the Secretary of State in Council of India or the government of any British colony or dependency or by any other railway company in any such colony or dependency which shall for the two years immediately preceding that in which the investment is made have paid a dividend on its ordinary stock or shares;

and such securities or investments may from time to time be varied at the discretion of the committee of the Fund for any others which they are for the time being authorised to invest in or make.

6. All the costs charges and expenses of and incidental to the preparing obtaining and passing of this Act or otherwise in relation thereto shall be paid out of the Fund. Costs of Act.

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